

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 07/17/2026

3ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02814

CASE NAME: NA WANG VS. SETH WIENER

HEARING IN RE: OF INTENTION TO MOVE TO VACATE SANCTIONS AND TO SET ASIDE THE
DISMISSAL / CONT'D FROM 6/26/2026 PER M/O

FILED BY: WANG, NA

TENTATIVE RULING:

On December 19, 2025, the court granted Defendant Seth W. Weiner's Motion for Terminating Sanctions and ordered the case dismissed with prejudice.

Before the court is Plaintiff Na Wang's Motion to Set Aside Dismissal, and Motion to

Vacate Orders and Sanctions, filed May 11, 2026.

Plaintiff's Request for Judicial Notice filed May 11, 2026 is granted. Judicial notice is not necessary for the court to take notice of its own orders and of pleadings in the instant court file.

Defendant's Request for Judicial filed June 12, 2026 is also granted.

Plaintiff's motions fail to state grounds upon which the court can order relief.

Relief is unavailable under Code of Civil Procedure (CCP) § 437(b) for several reasons. First, Plaintiff did not file her motion until May 11, 2026 --four months and 22 days after the order dismissing the case with prejudice on December 29, 2026. Courts recognize that a delay exceeding three months is unreasonable where the litigant provides no evidence to justify the delay. (*Minick v. City of Petaluma* (2026) 3 Cal. App. 5th 15, 35. Here the Plaintiff offers no evidence justifying her delay in filing.

In addition, Plaintiff does not offer any excusable neglect, but instead re-asserts her failure to appear at a court-ordered deposition date as due to "equipment failure." Plaintiff's explanation was not found credible by the court at the December 19, 2025 hearing and in any event it has no bearing on why it took four months and 22 days to file her instant motion. Plaintiff's "equipment failure" argument does not constitute excusable neglect for filing the instant motions on May 11, 2026.

Plaintiff cannot obtain relief pursuant to CCP § 663 because that section addresses setting aside a judgment, not a dismissal. Even if this were a judgment, Section 663 requires a Notice of Intention to be filed and served within 15 days after entry of dismissal. Defendant served the order dismissing the action electronically on December 19, 2025 and served notice of the entry of the order of dismissal on Plaintiff by electronic service on December 30, 2025. See Notice of Entry of Dismissal filed December 30, 2025. Plaintiff filed her Notice of Intention 57 days later on February 25, 2026. See Plaintiff's Notice of Intention to Move to Vacate Sanctions and Set Aside the Dismissal, filed February 25, 2026. Thus, even if this were the proper vehicle for Plaintiff her Notice of Intention was untimely.

In addition, Plaintiff's Notice of Intention did not "designate the grounds upon which the motion will be made and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts," as required by Section

663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

2. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
HEARING IN RE: TO VACATE ORDER AND SANCTIONS / CONTD FROM 6/26/2026 PER M/O OF 6/26/2026
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 1.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: TO TRANSFER AND CONSOLIDATE CASES
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiffs Aleksandra Kaczmarczyk (aka Schakanovich), Hasan Schakanovich, and Aldvin Schakanovich's Motion to Transfer and Consolidate Cases.

Plaintiff's Request for Judicial Notice of the Order After Hearing of the Stanislaus County Superior Court is **granted**. (Evid. Code §452 (d).) The Court can and will take judicial notice of the existence of the documents, as well as the truth of facts asserted therein as it is an Order of another court. (*Magnolia Square Homeowners Ass'n v. Safeco Ins. Co.* (1990) 221 Cal.App.3d 1049, 1056.)

Factual and Procedural Background

This action relates to issues surrounding the purchase of residential property located at 11 Halten Court (the "Property") by Plaintiffs in March 2022.